

5-6. 23CV03337 OBRIEN, CAMERON RILEY V. PBM SUPPLY & MFG INC ET AL

EVENTS: (1) Defendant's Motion to Compel Arbitration

*(2) Case Management Conference *Special Set*

The Court finds that Defendant PBM Supply & Mfg Inc.'s ("Defendant" herein) conduct is inconsistent with an intent to arbitrate. Specifically, Defendant failed to move to compel arbitration for over two years and its litigation conduct evidences a waiver of the right to arbitrate. Defendant's Motion to Compel Arbitration is denied. The Case Management Conference is continued to July 29, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

7. 24CV00332 TACALO, ALEXANDRA V. LARA, ANTHONY ET AL

EVENT: Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

The Court, in its discretion, is inclined to consider the untimely filed Opposition and continue this matter to June 10, 2026 at 9:00 a.m. to allow for the filing of a substantive Reply.

8. 24CV00765 HATZIS, MORGAN RAE V. PRIETO, MARIA NERISSA ET AL

EVENT: Plaintiff's Motion for Monetary Sanctions

The Proof of Service on the Amended Motion indicates that it was served electronically on May 6, 2026, which is only ten Court days' notice. Pursuant to *Code of Civil Procedure* §§1005 and 1010.6(3)(B), six additional Court days' notice, plus two additional Court days' notice is required for electronic service. While the Court previously indicated that Plaintiff was authorized to file an Amended Motion, it was under the assumption that the Amended Motion would be properly noticed. The Court continues this matter to June 24, 2026 at 9:00 a.m. to allow for proper notice. Any Opposition and/or Reply shall be filed and served pursuant to *Code of Civil Procedure* §§1005 and 1010.6 in accordance with the new hearing date.

9. 24CV01428 LARSON, COREEN V. PUTZMEISTER AMERICA, INC.

EVENT: Defendant's Motion to Continue Trial Date

Pursuant to the Stipulation of the parties and the Order to Continue Trial Date executed by this Court on May 14, 2026, Defendant's Motion to Continue Trial Date is moot and is off calendar.